

26STCV08441 26STCV08441

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Case Number: 26STCV08441 Hearing Date: August 21, 2026 Dept: 307

15 TENTATIVE RULING 9:15 a.m, Friday, August 21, 2026

MELISSA

COMBAR v. KEVIN STUCKER [26STCV08441]

DEFENDANT

KEVIN STUCKER'S DEMURRER TO THE SECOND AMENDED COMPLAINT

MEET AND

CONFER: OK [Counsel

met and conferred telephonically prior to the filing of this demurrer in compliance with Code Civ. Proc. § 430.41. (Goldstein Decl., ¶ 5.)

TIMELINE:

Residential real property foreclosure and brokerage dispute

2023: Plaintiff

Melissa Combar ("Plaintiff") inherits the residential real property

located

at 21322 Denker Ave. Torrance, CA 90501 (the "Property"). Plaintiff remains the title holder of the Property until a foreclosure sale occurs on 1/13/2026.

2024: During the probate process for the

Property, Plaintiff obtains financing secured by the Property (the "Loan").

Plaintiff falls behind on her payments, and the Loan goes into arrears.

Early 2025: The Loan enters default and

foreclosure proceedings on the Property commence. A Notice of Default is recorded, and a trustee's sale is scheduled for 12/12/2025. Plaintiff tries to sell the Property to satisfy the Loan, but she is unsuccessful.

November

2025: Plaintiff meets Defendant Kevin Stucker ("Defendant"), a

licensed

California real estate broker. Defendant tells Plaintiff that he is experienced in dealing with foreclosures and can help to delay or stop the trustee's sale. Defendant also states that he could structure a transaction to allow Plaintiff to remain living at the Property as a tenant and to receive money from her equity in the Property.

12/5/2025: Plaintiff executes a series of contracts prepared by Defendant, including: (1) an agreement entitled, "Cooperation and Fee Agreement," in which Plaintiff agrees to pay Defendant \$15,000 for his services, (2) a Promissory Note in favor of Defendant for \$15,000, (3) a Deed of Trust securing the obligations in the Cooperation and Fee Agreement and the Promissory Note, and (4) an agreement entitled, "Intent to Sell & First Right of Refusal Agreement", in which Plaintiff gave Defendant the right of first refusal to purchase the Property for \$600,000.

On

the same date, Defendant contacts the beneficiary and trustee of the trust deed holder of the Loan (Kerry Welsh) to request a postponement of the foreclosure sale. Defendant transmitted \$5,000 to Welsh in exchange for the postponement of the sale to 1/13/2026.

12/17/2025: Plaintiff executes an additional series of contracts prepared by Defendant, including: (1) a "Notice of Default Purchase Agreement," in which Plaintiff agrees to sell the Property for \$600,000 to Beverly Park Trust (the "Trust"), with Defendant identified as the Trust's agent, (2) a series of California Association of Realtors forms, and (3) a Residential Lease After Sale, which was contingent on the sale of the Property to the Trust. Plaintiff alleges Defendant was a beneficiary of the Trust. The purchase transaction involving the Trust never proceeds.

1/7/2026: Defendant records the Deed of Trust securing the \$15,000 Promissory Note in the Los Angeles County Recorder's

office.

1/13/2026: Defendant attends the foreclosure auction and announces his “undisclosed lien” on the Property, referring to the Deed of Trust. Defendant then purchases the Property for one penny over the amount owed to the foreclosing beneficiary. There were no other bidders.

3/9/2026: Defendant sends Plaintiff a “Three-Day Notice to Quit” by email, asserting his ownership of the Property following the foreclosure sale and demanding that Plaintiff surrender possession within three days.

3/16/2026: Plaintiff files the Complaint. On 3/26/2026, Plaintiff files the First Amended Complaint (“FAC”), alleging causes of action for:

1. Violation of the California Foreclosure Consultant Act (“CFRA”) (Civil Code § 2945 et seq.)

2. Violation of Home Equity Sales Contract Act (Civil Code § 1695 et seq.)

3. Wrongful Foreclosure/Trustee Sale Irregularity

4. Fraud/Intentional Misrepresentation

5. Constructive Fraud (Civil Code § 1573)

6. Breach of Fiduciary Duty

7. Cancellation of Instruments (Civil Code § 3412)

8. Quiet Title

9. Breach of Contract

10.

Unfair

Business Practices (Bus. & Prof. Code § 17200 et seq.)

11.

Declaratory

Relief

12.

Accounting

13.

Imposition

of Constructive Trust (Civil Code § 2224)

14.

Equitable

Lien

6/11/2026: The Court holds a hearing on

Defendant's demurrer and motion to strike as to the FAC. The Court sustains the

demurrer with leave to amend as to the third, eighth, twelfth, and fourteenth causes

of action, sustains the demurrer without leave to amend as to the fifth,

sixth, eleventh, and thirteenth causes of action, and overrules the demurrer as

to the first, second, fourth, seventh, ninth, and tenth causes of action. The Court strikes paragraph 244(c) but denies

Defendant's motion to strike Plaintiff's request for punitive damages.

6/25/2026: Plaintiff files the operative Second

Amended Complaint ("SAC"), alleging causes of action for:

1. Violation of the CFRA (Civil Code

§ 2945 et seq.)

2. Violation of Home Equity Sales

Contract Act (Civil Code § 1695 et seq.)

3. Violation of Civil Code § 2924h(g)

4. Fraud/Intentional

Misrepresentation

5. Cancellation of Illegal

Foreclosure – Consultant Instruments

6. Quiet Title

7. Breach of Contract

8. Violation of Bus. & Prof. Code

§ 17200 et seq.

9. Accounting

7/28/2026: Defendant files this Demurrer to the SAC, which is followed by Plaintiff's Opposition (8/10/2026). As of 8/20/2026, no Reply has been received.

TENTATIVE

RULING: DEFENDANT KEVIN STUCKER'S DEMURRER TO THE SECOND AMENDED COMPLAINT is OVERRULED in part and SUSTAINED without leave to amend in part.

I. DEMURRER

Defendant demurs to the first, third, sixth, and ninth causes of action in the SAC on the grounds that: (1) Plaintiff fails to state facts sufficient to constitute the causes of action against Defendant, (2) the pleading is fatally uncertain as to Defendant, and (3) the SAC fails to join necessary parties.^[1]

A.

1st

Cause of Action: Violation of the CFRA (Civil Code § 2945 et seq.) – OVERRULED

Defendant

argues that the CFRA does not apply to him because he was acting in the scope of his role as a licensed broker. (Mot., at p. 16; SAC, ¶¶ 2, 29.) Under Civil Code section 2945.1, subd. (b)(3), a foreclosure consultant “does not include” a person “licensed under Part 1 (commencing with Section 10000) of Division 4 of the Business and Professions Code when the person is acting under the authority of that license, as described in Section 10131 or 10131.1 of the Business and Professions Code.” (Civ. Code, § 2945.1, subd. (b)(3), *italics*

added.) The Court previously overruled Defendant's demurrer to the same cause of action in the FAC, finding that Plaintiff had expressly pled that Defendant "was not acting as Plaintiff's broker or agent in connection with the December 5, 2025 foreclosure-rescue transaction," consistent with the terms of the Cooperation and Fee Agreement. (Minute Order, 6/11/2026, at p. 3, citing FAC, ¶ 192, Exh. 1.) Although the Court did not grant leave to amend Plaintiff's first cause of action, Plaintiff has nevertheless made changes to the allegations in the SAC that warrant a re-assessment of this issue in the SAC.

The

Court finds that the altered allegations in the SAC do not change the analysis under Civil Code section 2945.1, subd. (b)(3). Defendant began communications with Plaintiff regarding the Property's foreclosure, the Loan, and ways to delay or stop the trustee's sale in November 2025. (SAC, ¶¶ 27, 32.) The Cooperation and Fee Agreement (dated December 5, 2025) identifies Defendant as the "Service Provider" for the Property pending foreclosure and confirms that Defendant was acting in the capacity of a real estate investor, not as Plaintiff's agent or broker. (Id. Exh. 1.) The Intent to Sell and First Right of Refusal Agreement identified Defendant as the "Buyer." (Id. Exh. 4.) The Trust was not identified as the proposed Buyer until December 17, 2025. (Id. ¶ 40.) After the transaction with the Trust failed, Defendant ultimately acquired title to the Property himself at the January 13, 2026 trustee's sale. (Id. ¶ 47.) Even if Defendant was hypothetically acting as a real estate broker for the brief period during which the Trust was identified as the intended Buyer of the Property, Defendant's foreclosure-related conduct spanned from November 2025 to January 2026, before the Trust was ever involved in the transaction and after the transaction with the Trust fell through. Taking Plaintiff's factual allegations as true, it can reasonably be inferred that Defendant was not acting under the authority of his real estate license throughout the entire course of executing and performing the foreclosure-related activities for the Property. At minimum, the SAC alleges sufficient facts to raise a factual question as to whether Defendant was protected by his status as a licensed broker, and this defense cannot be resolved at the demurrer stage.

Therefore,

Defendant's demurrer to the first cause of action in the SAC is OVERRULED.

B.

3rd

Cause of Action: Violation of Civil Code § 2924h, subd. (g) – SUSTAINED without leave to amend

Defendant

argues that the demurrer to the third cause of action in the SAC should be sustained because the Court did not grant leave to add a new cause of action under a separate statutory framework in its ruling on the prior demurrer to the FAC. (Minute Order, 6/11/2026.) Following an order sustaining a demurrer with leave to amend, a plaintiff may not add a new cause of action unless it is within the scope of the court's order granting leave to amend. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) In this case, although not formally reflected in the Minute Order on the prior demurrer, Plaintiff's counsel declares that he expressly requested leave to replace the then-existing wrongful foreclosure claim in the FAC with a cause of action based upon Defendant's alleged restraint or suppression of bidding at the trustee's sale in violation of Civil Code section 2924h, subd. (g). (Naggar Decl., ¶ 4.) Plaintiff's counsel declares that after oral argument, the Court permitted Plaintiff to amend the third cause of action to assert this Civil Code section 2924h, subd. (g) bid-restraint theory. (Id. ¶ 6.) Consistent with counsel's recollection, the Court did amend the tentative ruling to add leave to amend the third cause of action. (Compare RJN, Exh. B to RJN, Exh. A.) Based on this record, the Court construes Plaintiff's amendment to be within the scope of the Court's order granting leave to amend the third cause of action. Thus, the Court will reach the merits of this cause of action.

Civil

Code section 2924h, subd. (g) prohibits any person: (1) from offering to accept or accepting any consideration to refrain from bidding or (2) from fixing or restraining bidding in any manner at a sale of property conducted pursuant to a power of sale in a deed of trust or mortgage. (Civ. Code, § 2924h, subd. (g).) Here, Plaintiff alleges that Defendant "fixed, restrained, suppressed, deterred, discouraged, chilled, or otherwise affected bidding" at the trustee's sale for the Property by recording his own Deed of Trust on the Property just "days before" the trustee sale and "interrupting" the auction to announce his claimed second-lien position Deed of Trust immediately before bidding began without disclosing the dollar amount of his lien, thereby creating uncertainty and discouraging bidding. (SAC, ¶¶ 156, 158-162.)

Even so, disregarding

Plaintiff's conclusory allegations of "bid chilling," it remains unclear how Defendant's alleged conduct either fixed or restrained bidding in the trustee's sale for the Property. "A nonjudicial foreclosure sale is presumed to have been conducted regularly and fairly; one attacking the sale must overcome this common law presumption 'by pleading and proving an improper procedure and the resulting prejudice.'" (Knapp v. Doherty (2004) 123

Cal.App.4th 76, 86, fn. 4.) In this case, Plaintiff simply alleges that Defendant truthfully announced the existence of his second-position Deed of Trust before bidding began. (SAC, ¶ 160.)

It is not clear how these statements chilled bidding. For example, Plaintiff does not allege that there were other interested bidders present at the auction or that Defendant refused to reveal information about the junior lien when asked by other bidders.

Further, it is well established that

the interest of a junior lienholder "is always at risk of elimination through foreclosure of a senior lien." (Decon Group, Inc. v. Prudential Mortgage Capital Co., LLC (2014) 227 Cal.App.4th 665, 672-673.) Thus, the existence of a junior lien on the Property would have been immaterial to the price of the foreclosure sale on the Loan (as the senior lien on the Property). (Ibid. ["When a senior lienholder accepts a deed in lieu of foreclosure and then forecloses on the ... senior lien, the junior lienholder retains the right to bid at the foreclosure sale, and if the property sells for more than the outstanding senior indebtedness, then the excess will be paid to the junior lienholder, up to the amount of the junior lien."].) Accordingly, the factual allegations in the SAC do not support Plaintiff's conclusion that Defendant's conduct fixed or restrained bidding in violation of Civil Code section 2924h, subd. (g)(2).

Plaintiff

fails to meaningfully oppose the merits of Defendant's demurrer to this cause of action. For example, Plaintiff offers no legal authority or any factual argument to demonstrate that the factual allegations on the face of the SAC are sufficient to state a statutory cause of action for bid chilling. While Plaintiff contends that "restraint, causation, prejudice, or equitable consequences is a merits question," the factual allegations in the SAC are too sparse to suggest a causal connection between Defendant's conduct and any resulting bid chilling. (Opp., at p. 13.) Plaintiff does not identify any such facts that could be alleged to cure this defect. Plaintiff has merely repackaged the defective third cause of action as a claim for violation of Civil Code

section 2924h, subd. (g)(2) instead of a wrongful foreclosure claim without pleading any additional factual allegations to support a viable bid chilling theory.

Alternatively,

Plaintiff offers to move the Civil Code section 2924h, subd. (g) bid-restraint allegations from a separately captioned third cause of action into the existing UCL claim to streamline the pleadings stage. (Opp., at p. 5.) However, as Plaintiff has not demonstrated the existence of facts to support this statutory claim, the Court finds that such an amendment would be futile.

Therefore,

Defendant's demurrer to the third cause of action in the SAC is SUSTAINED without leave to amend.

C.

6th

Cause of Action: Quiet Title – SUSTAINED without leave to amend

Plaintiff's sixth cause

of action for quiet title is insufficiently pled. Plaintiff seeks an order quieting title in her favor as of the date of the foreclosure sale (January 13, 2026) on the grounds that Defendant's claim to title of the Property was not duly perfected given his bid chilling and his exploitation of an "unfair informational advantage at the sale" in violation of Civil Code section 2924h, subd. (g). (SAC, ¶¶ 224, 228-229.) As described above, Plaintiff fails to allege sufficient facts to demonstrate that Defendant wrongfully acquired title to the Property in violation of Civil Code section 2924h, subd. (g). (See *supra*, Section I.B.) Further, this Court has already found that Plaintiff fails to plead facts demonstrating that Defendant unlawfully acquired title through a wrongful foreclosure. (Minute Order, 6/11/2026, at p. 10.) Because Plaintiff has not demonstrated that the trustee's sale was procedurally invalid or otherwise unenforceable, there is no factual basis from which to find that Defendant's title is defective. Accordingly, Plaintiff has not demonstrated that she is entitled to equitable relief in the form of quieting title to the Property in her favor.

Therefore,

Defendant's demurrer to the sixth cause of action in the SAC is SUSTAINED without leave to amend.

D. 9th Cause of Action:

Accounting – SUSTAINED without leave to amend

Plaintiff's

ninth cause of action for an accounting is insufficiently pled. "A cause of action for an accounting requires a showing that a relationship exists between the plaintiff and defendant that requires an accounting, and that some balance is due the plaintiff that can only be ascertained by an accounting." (Teselle v. McLoughlin (2009) 173 Cal.App.4th 156, 179 (Teselle).) "An action for accounting is not available where the plaintiff alleges the right to recover a sum certain or a sum that can be made certain by calculation." (Ibid.)

Here, Plaintiff

seeks an accounting of the finances arising from the funds paid, received, retained, and exchanged in connection with the foreclosure-rescue transaction, the December 2025 documents, the January 2026 Deed of Trust recordation and the trustee's sale, as well as Defendant's title, and any post-sale possession and rent claims. (SAC, ¶¶ 297, 301-302.) Plaintiff alleges that Defendant's accounting obligations arise because he "occupied multiple overlapping roles in the same transaction," which created a relationship in which Defendant obtained access to Plaintiff's finances, including her rights and debts, which Plaintiff was in foreclosure distress. (Id. ¶ 306.)

Defendant

argues that Paragraphs 297-314 seek an accounting for the same information which will be adjudicated with respect to the remedies that Plaintiff is seeking from her other causes of action in this lawsuit. (Mot., at p. 22.) In other words, Defendant argues that Plaintiff is effectively seeking an accounting to determine the value of the damages and equitable relief available to her through her other causes of action in the SAC. The Court agrees that Plaintiff's request is not a proper use of an accounting claim. As the Court has already held in its prior ruling on Defendant's demurrer to the SAC, it is not clear from the pleadings that "some balance is due" to Plaintiff "that can only be ascertained by an accounting" because the sum of the transactions underlying this lawsuit are not in dispute. (Teselle, supra, 173 Cal.App.4th at p. 179.) Meanwhile, Plaintiff fails to meaningfully explain why the other causes of action are insufficient to gain the information that she seeks in her accounting claim. In fact, Plaintiff concedes that she is prepared to proceed without an independent accounting claim if the Court concludes that these financial matters can be fully litigated through the surviving

claims. (Opp., at pp. 5, 16.)

Therefore,

Defendant's demurrer to the ninth cause of action in the SAC is SUSTAINED without leave to amend.

II. REQUEST FOR JUDICIAL NOTICE

Plaintiff

requests judicial notice of the following court documents: (1) Minute Order (dated June 11, 2026) concerning Defendant's demurrer and motion to strike as to the FAC (RJN, Exh. A); and (2) the Court's Tentative Ruling on Defendant's demurrer and motion to strike as to the FAC (RJN, Exh. B). The Court takes judicial notice of the existence of these rulings pursuant to Evidence Code section 452, subd. (d).

Defendant Kevin Stucker to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR emailed to counsel and posted to court's website on 8/20/26 at 1:30.

[1] Like in Defendant's prior demurrer, Defendant once again fails to make any argument with respect to the failure to join parties, and thus, the Court considers this argument abandoned.